

24STCV21716 24STCV21716

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-14

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Case Number: 24STCV21716 Hearing Date: August 14, 2026 Dept: 224

Santander

TENTATIVE RULING

The OSC is CONTINUED to October 15, 2026 at 9:30 a.m. for Plaintiff to submit its Proposed Judgment on a JUD-100 form. The Court also sets a Default Prove-up hearing on October 15, 2026 at 9:30 a.m., where Plaintiff will be required to prove-up its legal title and ownership of the auto. Plaintiff must give Defendants notice of this hearing. Any party claiming to have an interest in the auto may be heard at the hearing.

Plaintiff shall file and serve the JUD-100 form, and a list of exhibits it intends to use at the prove-up hearing, no less than 10 days before the hearing.

Plaintiff to give notice to Defendants, and file proof of service of notice within 5 days.

ANALYSIS

FACTS OF THE CASE: Plaintiff Santander Consumer USA, Inc. purports to be the legal owner of a vehicle leased to Vladimir Koltygin. Koltygin transferred the vehicle to defendants The Body Shop Collision L.L.C, et al. for repair or storage. The vehicle allegedly racked up more than \$50,000 worth of labor, tow, and storage fees, causing the Body Shop to retain possession of the vehicle. Plaintiffs believe their ownership claim to the vehicle supersedes that of the Body Shop, and that the defendants have acted purposefully and maliciously in refusing to return it. Plaintiffs initially sought the return of the vehicle or the payment of the value thereof plus interest in case return is impossible, punitive and exemplary damages, recoupment of their attorneys' fees, the quieting of their title to solidify their ownership claim to the vehicle, and declaratory relief that clarifies the rights and obligations of all parties involved in the controversy. They are currently seeking from the Body Shop the return of the vehicle or fair market value thereof, as well as attorney's fees, and are seeking from the DMV validation of their ownership claim to the vehicle and the voiding of any competing ownership claim or hold placed on the vehicle.

PROOF OF SERVICE/DEFAULT:

Default previously entered 9/25/25; 9/11/25

PRINCIPAL REQUESTED: \$ 37,475.00

ATTORNEY'S FEES: \$ 1,750.00

TOTAL: \$ 39,225.00

ANALYSIS:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered.

Plaintiff has dismissed DOES 1-10, all parties against whom a default judgment is not being sought.

There is no pending motion to vacate default.

The address given for the Body Shop on the CIV-100 form, 711 N ALEXANDRIA AVE, LOS ANGELES, CA 90029, is the same as the address on the proof of service. The address given for the California DMV, 2415 FIRST AVE., SACRAMENTO, CA 95818, is the same as the address on the proof of service.

The JC Form CIV-100 was used to request court judgment, item #2 of said form was filled out, and the declaration of non-military status was filled out.

The Request for Entry of Default requests less monetary relief than the Complaint. Plaintiff requests "interest at the legal rate" in the complaint, but there is no interest sought in the CIV-100 form. They also sought punitive and exemplary damages "in an amount to be proven at trial" in the complaint, but not in the CIV-100 form.

A 585 Declaration has been provided in support of the judgment sought.

The submitted evidence properly supports the principal amount of damages sought from the Body Shop. The exhibits attached to the 585 declaration establish the value of the vehicle, the lease of the vehicle to Koltygin, the possession of the vehicle by the Body Shop, and the notification of the Body Shop as to the pending lawsuit.

The submitted evidence, specifically Exhibit B, the DMV Certificate of Title, supports the claim that the Plaintiff is the legal owner of the vehicle.

PROBLEMS:

The proposed judgment is not submitted on a JUD-100 form.

DISPOSITION:

The OSC was previously for Plaintiff to remedy the following deficiencies:

The proposed judgment is not submitted on a JUD-100 form.

Attorney's fees are requested by the complaint, but are in excess of what they should be considering LASC Local rule 3.214.

The Plaintiffs seek judgment against the DMV in the form of conditional orders regarding the DMV having potentially issued a conflicting ownership certificate or placed a hold on the vehicle, using "to the extent that" language. However, it has not

been established that the DMV has refused to honor the Plaintiff's ownership claim to the vehicle, issued a conflicting ownership certificate, or placed a hold on the vehicle. These requested forms of relief from the DMV therefore run afoul of the "actual controversy" requirement, and ask the court to give an advisory opinion regarding a hypothetical situation, due to the lack of proven predicate for these conditional orders.

The judgment sought by the Plaintiff against the DMV effectively amounts to quiet title. The Complaint also alleges a quiet title cause of action. California Code of Civil Procedure section 764.010 mandates that in quiet title actions, "The court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants" (CCP § 764.010). This statute imposes an absolute ban on traditional default judgments in quiet title actions and requires an open-court evidentiary hearing before rendering judgment (*Paterra v. Hansen*, 64 Cal.App.5th 507 (2021).) The court must examine and determine the plaintiff's title against all defendants' claims and render judgment in accordance with the evidence and law (CCP § 764.010)

The submitted evidence has not proven that the DMV is liable. In fact, Exhibit B seems to show that the DMV has not refused to validate the Plaintiff's ownership claim to the vehicle. If they have done so more recently or through other methods, that needs to be established by evidence or declaration.

Since the last hearing, Plaintiff has abandoned its claim for attorney's fees, and dismissed its causes of action for Quiet Title, Declaratory Relief. Plaintiff has further dismissed Defendant California DMV from the action.

Because no quiet title cause of action remains in the operative pleading, the bar of CCP § 764.010 no longer applies. (*Deutsche Bank National Trust Co. v. Pyle* (2017) 13 Cal.App.5th 513 [quiet title procedural protections apply only to actions properly brought under the statutory framework].)

However, the proposed judgment is still not submitted on a JUD-100 form.

Further, paragraph 1(a) of the proposed judgment asks the Court to adjudicate Plaintiff the legal owner of the subject vehicle. Notwithstanding the dismissal of the quiet title cause of action, a decree adjudicating ownership as against an adverse claimant is in substance a quieting of title, and the quiet title statutes reach personal property as well as real property (CCP § 760.020(a)). Plaintiff cannot obtain by decree the relief it has dismissed from the pleading. Moreover, with the DMV dismissed, such a decree binds no party actually contesting Plaintiff's ownership. The Body Shop Collision L.L.C. asserts a mechanic's lien, not title.

CONCLUSION

The OSC is CONTINUED to October 15, 2026 at 9:30 a.m. for Plaintiff to submit its Proposed Judgment on a JUD-100 form. The Court also sets a Default Prove-up hearing on October 15, 2026 at 9:30 a.m., where Plaintiff will be required to prove-up its legal title and ownership of the auto. Plaintiff must give Defendants notice of this hearing. Any party claiming to have an interest in the auto may be heard at the hearing.

Plaintiff shall file and serve the JUD-100 form, and a list of exhibits it intends to use at the prove-up hearing, no less than 10 days before the hearing.

Plaintiff to give notice to Defendants, and file proof of service of notice within 5 days.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.